

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**

Civil Action No. 1:15-cv-00720-NYW

SILO ROMERO,

Plaintiff,

v.

HELMERICH & PAYNE INTERNATIONAL DRILLING CO.,

Defendant.

SPECIAL VERDICT FORM

We, the jury, present our Answers to Questions submitted by the Court, to which we have all agreed:

1. Did plaintiff, Silo Romero, during the course of his employment, pursue a worker's compensation claim for wage loss benefits related to a July 2012 surgery, including retaining an attorney, and reasonably believe that he had a right to exercise his right or privilege as a worker?

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YES

☐ NO

IF YOUR ANSWER IS YES, PLEASE PROCEED TO QUESTION 2.

IF YOUR ANSWER IS NO, THEN YOU HAVE REACHED A VERDICT IN FAVOR OF DEFENDANT. PLEASE SIGN AND DATE THE SPECIAL VERDICT FORM.

2. Was defendant, Helmerich & Payne International Drilling Co., aware or should it reasonably have been aware that plaintiff reasonably believed he had a right to exercise his right or privilege as a worker?

☒

YES

☐ NO

IF YOUR ANSWER IS YES, PLEASE PROCEED TO QUESTION 3.
IF YOUR ANSWER IS NO, YOU HAVE REACHED A VERDICT IN FAVOR OF
DEFENDANT. PLEASE SIGN AND DATE THE SPECIAL VERDICT FORM.

3. Did defendant actually discharge the plaintiff because the plaintiff exercised his right as
a worker to file a worker's compensation claim for loss wage benefits?

✓ YES _____ NO

IF YOUR ANSWER IS YES, YOU HAVE REACHED A VERDICT IN FAVOR OF
PLAINTIFF. PLEASE PROCEED TO QUESTION 5.
IF YOUR ANSWER IS NO, PLEASE PROCEED TO QUESTION 4.

4. Did defendant constructively discharge the plaintiff because the plaintiff exercised
his right as a worker to file a worker's compensation claim for loss wage benefits?

✓ YES _____ NO

IF YOUR ANSWER IS YES, YOU HAVE REACHED A VERDICT IN FAVOR OF
PLAINTIFF. PLEASE PROCEED TO QUESTION 5.
IF YOUR ANSWER IS NO, YOU HAVE REACHED A VERDICT IN FAVOR OF
DEFENDANT. PLEASE SIGN AND DATE THE SPECIAL VERDICT FORM.

5. State your answers to the following questions relating to the plaintiff's damages that
were caused by the defendant's wrongful discharge in violation of public policy of the plaintiff
from his employment with the defendant.

- a. What is the total amount of plaintiff's damages, if any, for noneconomic losses or
injuries? Noneconomic losses or injuries are those losses or injuries described in numbered
paragraph 1 of Instruction No. 15. You should answer "0" if you determine there were none.

ANSWER: 100,000.00

- b. What is the total amount of plaintiff's damages, if any, for economic losses? Economic

losses are those losses described in numbered paragraph 2 of Instruction No. 15. You should answer "0" if you determine there were none.

ANSWER: 500,000.00

c. What is the total amount, if any, by which Plaintiff's losses, both economic and noneconomic, should be reduced due to Plaintiff's own failure to mitigate his damages as detailed and decided under Instruction No. 20. If you determine Plaintiff adequately mitigated his damages, you should answer "0."

ANSWER: 20,000.00

PLEASE SIGN AND DATE THE VERDICT FORM AND ALERT TO COURT SECURITY OFFICER THAT THE JURY HAS REACHED A VERDICT.

Signatures of all jurors (indicate foreperson):

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DATED: 8/18/17